

in *Dennis*, "there is no similar constitutionally based privilege immunizing judges. . . ." *Id.*

Second, the separation of powers cautions against suits before the judiciary against members of the legislature. Thus, "legislative immunity is also constitutionally based to the extent that at least the rudiments of separation of power principles must be protected from federal interference." Nagel, *supra*, at 245. As Chief Justice Burger emphasized in *Nixon v. Fitzgerald*, 102 S.Ct. 2690 (1982), while the separation of powers "mandate[s]" immunity for other branches of government, *id.* at 2706, "the Constitution provides no hint that either judges, prosecutors or Congressional aides should be so protected," *id.* at 2707 n.2. In fact, as has already been discussed, were this Court to extend immunity for judicial officers so as to be co-extensive with that of legislators, such immunity would surpass that accorded the executive branch, which has a constitutional basis in the concept of the separation of powers. *Cf. Butz v. Economou*, 438 U.S. 478, 528 n. (Rehnquist, J., dissenting) (noting the "irony" of such incongruous treatment).

Third, and most important, this Court's granting legislators the most complete, extreme immunity possible for their legislative acts does not create a gap in the justiciability of constitutional claims analogous to that which would be created by such immunity for judicial officers. As has been discussed above, were this Court to extend judicial immunity to prospective relief, federal courts would be powerless to protect certain constitutional rights. A class of constitutional violations, as those involved in the present case, would be placed effectively beyond the review of such courts. Yet legislative acts rarely create the kind of constitutional insults and abuses to individuals of which the executive and judicial bran-

ches are capable. Moreover, any such abusive legislation can be challenged without suit against the legislator himself, as by challenge against the enforcement of the unconstitutional act. See, e.g., *Dombrowski v. Pfister*, 380 U.S. 479 (1965).

Thus, the argument that judicial immunity should be extended to prospective relief because legislators are granted that ultimate immunity is an empty one.

- C. Immunity from damages is provided to judges and prosecutors to protect the integrity of the judicial process; to the same end, judges, like prosecutors, are subject to suit for prospective relief in the narrow range of cases in which it is necessary to protect federal constitutional rights.

As established above, the doctrine of judicial immunity can hardly derive any modern day justification from its historical purpose to enforce appeals. Nor can such justification be derived from a need for independence from the Star Chamber nor from the Constitution nor from the separation of powers principle. In fact, of the three branches of government, the immunity given the judiciary is based on justification which has been deemed of singularly "mysterious" origin. Nagel, *supra*, at 245.

Yet the mystery is resolved upon recognition that judicial immunity is but one of a number of immunities provided to protect the judicial process, as this Court explained in its recent decision in *Briscoe v. Lahue*, 103 S.Ct. 1108 (1983).

In *Briscoe*, the Court squarely rejected, as it had previously, see, e.g., *Supreme Court of Virginia v. Consumers Union*, 446 U.S. 719 (1980); *Stump v. Sparkman*, 435 U.S. 349 (1978), an immunity analysis based on status for one based on function. Such functional analysis leads to

the conclusion, as it led this Court in *Briscoe*, that judicial immunity is but one immunity which this Court has provided as a buffer around the truth-finding, decision-making process. Others include immunity for prosecutors, *Imbler v. Pachtman*, 424 U.S. 409 (1976), grand jurors, *id.* at 423 n. 20, and witnesses, *Briscoe*.

On this point, this Court could hardly have been clearer.

The common law's protection for judges and prosecutors formed part of a "cluster of immunities protecting the various participants in judge-supervised trials," which stemmed "from the characteristics of the judicial process." *Butz v. Economou*; cf. *King v. Skinner*, 98 Eng. Rep. 529 (K.B. 1772) ("Neither party, witness, counsel, jury, or Judge can be put to answer, civilly or criminally, for words spoken in office.")

Briscoe at 1115-16 (citations omitted). The Court recognized that, without such immunity, "[a] witness's apprehension of subsequent damages liability might induce . . . censorship." *Id.* at 1114. Such a witness "who knows that he might be forced to defend a subsequent lawsuit, and perhaps pay damages, might be inclined to shade his testimony in favor of the potential plaintiff. . . ." *Id.* at 1115. Furthermore, "[t]he loser in one forum will frequently seek another. . . ." *Id.* at 1116, quoting *Butz v. Economou*, 438 U.S. at 512.

These concerns are echoes from this Court's earlier decision in *Imbler v. Pachtman*, where it observed that "[t]he common-law immunity of a prosecutor is based upon the same considerations that underlie the common-law immunities of judges and grand jurors. . . ." *Id.* at 422-23. Those considerations included:

concern that harassment by unfounded litigation would cause a deflection of the prosecutor's energies